

26STCV05035 26STCV05035

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Case Number: 26STCV05035 Hearing Date: June 29, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: June 29, 2026

Case Name: Velaquez, et al. v. Rivas

Miranda

Case

No.: 26STCV05035

Matter: Demurrer

with Motion to Strike

Moving

Party: Defendant Manuel De

Jesus Rivas Miranda

Responding Party: Plaintiffs Daniel Z. Velazquez and

Angeles Z. Serafin

Tentative Ruling: Defendant

Manuel De Jesus Rivas Miranda's demurrer is overruled.

Defendant

Manuel De Jesus Rivas Miranda's motion to strike is denied.

Plaintiffs

Daniel Z. Velazquez and Angeles Z. Serafin ("Plaintiffs") filed this action against Defendants Manuel De Jesus Rivas Miranda ("Defendant"), and all persons unknown, claiming any legal or equitable right, title, estate, lien, easement, or interest in the property described in the complaint adverse to plaintiffs' title, claims or rights, or any cloud on Plaintiffs' title, claims or rights thereto, named as Does 1 to 10. The Complaint alleges six causes of action for: (1) fraud; (2) quiet title; (3) cancellation of deed; (4) financial elder abuse; (5) conversion; and (6) declaratory relief.

Defendant

demurs to Plaintiffs' Complaint and moves to strike portions of Plaintiffs' Complaint. Plaintiffs oppose.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations

not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendant contends that the parties met and conferred over email. (McNally Decl., ¶¶4-7.) However, email exchanges do not suffice the meet and confer requirements per Code of Civil Procedure sections 430.41 and 435.5. Thus, the parties did not meet and confer. In the interest of judicial efficiency, the Court will address the merits of Defendants’ demurrer and motion to strike.

Demurrer

As

an initial matter, Defendant has not specified as to what portions of the Complaint he demurs to. According to the moving papers and notice of motion, Defendant is only moving to strike portions of the Complaint. In reply, Defendant states, “Plaintiffs also attempt to recast the demurrer as a motion to strike directed at punitive damages. That argument is misplaced. Defendant’s demurrer challenges the sufficiency of the pleaded causes of action under Code of Civil Procedure section 430.10, subdivisions (e) and (f). The Court should decide the demurrer on that basis.” (Reply, 2:13-16.) Moreover, Defendant attempts to correct his procedural defects in reply by raising new arguments. “Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.” (Reichardt v. Hoffman (1997) 52 Cal.App.4th 754, 764, as modified on denial of reh’g (Mar. 5, 1997).)

Thus,

Defendant's demurrer is overruled in its entirety for the reasons mentioned above.

Motion

to Strike

Defendant

moves to strike the following portions of Plaintiffs' Complaint that relate to punitive damages: (1) paragraph 18, lines 3-4; (2) paragraph 36, lines 3 and 27-28; (3) paragraph 40, lines 13-15; and (4) page 9, lines 13. Defendant also moves to strike the statement of damages.

Statement of Damages

As an

initial matter, Defendant does not provide any legal authority to support his claim that he can strike Plaintiff's statement of damages. Moreover, Code of Civil Procedure section 435 can only be used to strike complaints, cross-complaints, and answers. (Code Civ. Proc., § 435, subd. (a)-(b).)

Thus, the

Court denies Defendant's motion to strike as to Plaintiffs' statement of damages.

Punitive

Damages

A plaintiff can recover punitive

damages in tort cases where "the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Punitive damages thus require more than the mere commission of a tort. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (Grieves).) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) "Such damages are accessible only upon a showing that the defendant "act[ed] with the intent to vex, injure, or annoy." (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1285.)

Defendant

fails to meet his burden of proof for the Court to grant his motion as to striking portions of the Complaint regarding punitive damages. Defendant makes a conclusory argument stating the "Complaint did not demonstrate any allegations, circumstances, or legal significant facts that pertain to punitive damages." (Mot., 5:12-15.)

Thus, the

Court denies Defendant's motion to strike as to Plaintiffs' allegations relating to punitive damages and prayer for punitive damages.

Conclusion

Defendant

Manuel De Jesus Rivas Miranda's demurrer is overruled.

Defendant

Manuel De Jesus Rivas Miranda's motion to strike is denied.